

In Dubio Contra Reum: a definition

Cite as: Martin Paul Eve, "In Dubio Contra Reum: a definition", *eve.gd: Martin Paul Eve*, March 04, 2011, <https://doi.org/10.59348/8fpx9-a3q03>.

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I am currently reading Hannah Arendt's *Eichmann in Jerusalem* and came across the phrase "*in dubio contra reum*" on p. 214. My Latin being a little rusty, and it being late in the day, I whacked the term into Google and was disappointed to find that there was no adequate definition of the term in the search results; merely band names and a German entry. Anyway, thinking about it a bit more and looking up "reum" in my Latin dictionary reveals the definition, which I thought I'd share.

The definition of *in dubio contra reum* is "in doubt, against the accused", meaning that, where there is doubt, the accused in a trial is not given the benefit of that doubt; they are assumed guilty.

In Arendt's case, for those interested, she concludes that there was a lack of corroborating evidence of Eichmann's complicity in the deportation of *all* Jews to Auschwitz and Arendt therefore applies the term to the verdict on this score.